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LEARNER GUIDE

For

Unlocking Business Potential with Strategic Negotiation Tactics

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How to Use This Guide

Read the concept section before each activity, then complete the activity in its individual folder. Detailed procedures belong here and in the activity Markdown files; the slide deck remains visual and concept-led.

Evidence boundary: Each activity uses an authentic workplace negotiation setting. Organisation details, metrics and operational inputs created for practice are explicitly fictional training assumptions.

Course Learning Outcomes and TSC Mapping

- LO1: Identify negotiation outcomes, the context of negotiation and relevant background information required to prepare for negotiation.
- LO2: Apply negotiation techniques during negotiation and record negotiations for post-negotiation evaluation.

Knowledge

- K1: Negotiation objectives
- K2: Context of negotiation
- K3: Social and cultural differences which may affect negotiations
- K4: Interpersonal skills
- K5: Communication and conflict resolution techniques
- K6: Relevant precedents in past negotiations

Abilities

- A1: Identify negotiation outcomes in commercial situations to establish the organisation's desired position
- A2: Identify roles and responsibilities needed to support negotiation objectives
- A3: Prepare relevant background information to understand the other party's position
- A4: Use negotiation processes and techniques to assist in achieving desired outcomes
- A5: Record negotiations for evaluation and documentation purposes

The Real-World Activity Portfolio

Activities 1–10 cover supplier renewal, SaaS contracting, commercial leasing, cross-cultural distribution, job offers, agency retainers, logistics recovery, construction variations, growth investment and a strategic sustainability partnership. Every activity is self-contained and distinguishes verified facts, working hypotheses and simulated inputs.

Activity 1 — Renew a Critical Ingredient Supply Agreement: [primary case source](#)

Activity 2 — Create a SaaS Renewal Team Mandate: [primary case source](#)

Activity 3 — Prepare a Commercial Lease Renewal: [primary case source](#)

Activity 4 — Plan a Singapore–Japan Distribution Partnership: [primary case source](#)

Activity 5 — Design a Total-Reward Job Offer Negotiation: [primary case source](#)

Activity 6 — Anchor and Frame an Agency Retainer: [primary case source](#)

Activity 7 — Recover a Logistics Service Relationship: [primary case source](#)

Activity 8 — Break a Construction Variation Impasse: [primary case source](#)

Activity 9 — Negotiate a Multi-Party Growth Investment: [primary case source](#)

Activity 10 — Run and Debrief a Strategic Sustainability Partnership: [primary case source](#)

Topic 1 — Preparation for Negotiation

TSC mapping: K1 · K2 · K3 · A1 · A2 · A3. Outcomes · context · roles · research · BATNA · culture · planning.

Key Concepts

- Outcome: Define the target, reservation point, relationship goal and implementation needs.
- Context: Map parties, issues, authority, constraints, precedents and the wider commercial setting.
- Alternatives: A credible BATNA creates walk-away discipline and strengthens judgement.
- Preparation: Research interests, options, criteria, culture, risks and team roles before the meeting.

Preparation converts pressure into choice.

Key point: Preparation converts pressure into choice. A negotiator with clear priorities and alternatives can stay curious without becoming careless.

Negotiation is everywhere

- Commercial: Supplier terms, customer contracts, leases, licensing and partnerships.
- Workplace: Resources, deadlines, roles, salary, scope and performance expectations.
- Strategic: Alliances, acquisitions, restructures and multi-party commitments.
- Everyday: Any dialogue where parties seek agreement despite differing preferences.

A four-stage negotiation process

1. Prepare
2. Discuss and diagnose
3. Bargain and create value
4. Close, record and review

Positions and interests

Perspective A

- A position states what a party says it wants.
- Arguing positions can lock both sides into face-saving.
- Treat a position as an opening signal, not the full diagnosis.

Perspective B

- An interest explains why an outcome matters.
- Questions reveal priorities, fears, constraints and tradeable differences.
- Interests create room for options that positions conceal.

Three bargaining situations

- Distributive: Divide a fixed amount; protect the reservation point and claim value.
- Integrative: Trade differences in priorities, timing, risk or capability to create value.
- Mixed-motive: Most business deals require both value creation and value claiming.

Define the outcome hierarchy

- Must-have: A condition required for authority, viability, safety or compliance.

- Target: A challenging but supportable result used to guide proposals.
- Tradeable: A term you can exchange because it matters more to the other side.
- Relationship: Trust, reputation and future cooperation that should survive the deal.

BATNA, WATNA, reservation point and ZOPA

- BATNA: Best course of action if this negotiation produces no agreement.
- WATNA: Credible downside if talks fail; useful for risk awareness, not as a target.
- Reservation point: Worst acceptable negotiated outcome before the BATNA is better.
- ZOPA: Range where both parties prefer an agreement to their alternatives.

Strengthen your BATNA

1. List alternatives
2. Test feasibility
3. Estimate value and cost
4. Improve the strongest option
5. Set reservation point
6. Keep it current

Your BATNA is not a threat.

Key point: Your BATNA is not a threat. It is the decision standard that protects you from accepting a deal worse than a realistic alternative.

Map the negotiation context

- Parties: Decision-makers, users, advisers, influencers, blockers and absent stakeholders.
- Issues: Price, scope, quality, timing, risk, governance, service and future options.
- Constraints: Budget, policy, regulation, deadlines, capacity and approval limits.
- History: Prior deals, promises, disputes, precedents and implementation performance.

Stakeholder and authority map

1. Sponsor
2. Lead negotiator
3. Subject specialist
4. Observer / recorder
5. Approver
6. Implementation owner

Roles and responsibilities

Perspective A

- The lead manages agenda, process, questions and package movement.
- Subject specialists test claims and explain operational consequences.
- A recorder captures proposals, rationale, conditions and open items.

Perspective B

- The sponsor sets objectives, mandate and escalation boundaries.

- The approver confirms commitments inside delegated authority.
- The implementation owner tests whether promises can be delivered.

A negotiation mandate

- Authority: What may be agreed at the table and what needs approval.
- Limits: Reservation points, legal red lines and prohibited commitments.
- Escalation: Who decides when assumptions, risk or value changes materially.
- Communication: Who may speak externally and how internal alignment is maintained.

Background research sequence

1. Clarify decision
2. Gather internal evidence
3. Research counterpart
4. Benchmark market
5. Test assumptions
6. Prepare questions

Research the other party

- Business model: Revenue, costs, customers, dependencies and current priorities.
- Likely interests: What success, risk and internal credibility may mean to them.
- Constraints: Budget cycle, approvals, capacity, regulation and alternatives.
- Signals: Public commitments, prior behaviour and terms they repeatedly protect.

Objective criteria and precedent

Perspective A

- Use market rates, independent benchmarks, policy, expert evidence and comparable deals.
- Explain why the criterion is relevant and how it should be applied.
- Choose criteria before knowing which side they favour.

Perspective B

- A precedent can guide consistency but may reflect a different context.
- Compare scope, timing, risk, volume and relationship before relying on it.
- Document why a precedent applies—or why a justified exception is needed.

Build an issue-priority matrix

- High / high: Core issues for both sides; seek evidence and creative packages.
- High / low: Protect what matters to you and exchange value rather than concede.
- Low / high: Low-cost terms you may trade for higher-priority gains.
- Low / low: Resolve efficiently so attention remains on consequential issues.

Plan concessions before pressure arrives

- Sequence: Move from lower-cost to higher-cost concessions deliberately.
- Condition: Use if–then trades; never give without receiving or learning.
- Signal: Smaller, slower movement communicates proximity to the limit.

Create value through differences

- Priority: Trade an issue important to them for one important to you.

- Time: Exchange payment timing, delivery sequence or contract duration.
- Risk: Allocate warranties, guarantees, contingencies or performance incentives.
- Capability: Bundle training, data, service, access or implementation support.

Develop package proposals

1. List issues
2. Assign relative value
3. Create equivalent packages
4. Stress-test risks
5. Prepare rationale
6. Choose opening package

Culture affects process—not stereotypes

- Communication: Direct and indirect expression may signal disagreement differently.
- Time: Pace, silence, deadlines and relationship-building vary by context.
- Authority: Decision-making may be individual, hierarchical or consensus-based.
- Face and trust: Public challenge, status and relationship history can shape candour.

Use cultural hypotheses, then verify them.

Key point: Use cultural hypotheses, then verify them. Ask respectful process questions and adapt to the individual; nationality is never a complete behavioural forecast.

Venue, time and agenda

- Venue: Choose privacy, accessibility, neutrality and access to evidence—not superstition.
- Timing: Allow preparation, approvals and breaks; avoid artificial urgency.
- Agenda: Sequence information, issues, decisions and ownership transparently.
- Mode: Plan document sharing, sidebars and signals for in-person or virtual talks.

Information sharing

Perspective A

- Share facts needed to diagnose interests, generate options and implement a deal.
- Correct material misstatements and meet legal or ethical disclosure duties.
- Use staged reciprocity: disclose purposefully and test trust over time.

Perspective B

- Protect privileged data, trade secrets, reservation points and third-party information.
- Do not bluff about authority, alternatives or facts that can undermine trust.
- Agree confidentiality, data handling and record ownership before exchange.

Activity 1 — Renew a Critical Ingredient Supply Agreement

TSC mapping: K1 · K2 · A1 · A3. Define commercial outcomes, BATNA, reservation point, ZOPA hypotheses and evidence needs before a supplier renewal..

Goal and Deliverable

Act as the procurement team of a Singapore café group renewing a high-volume oat-milk supply agreement after demand growth and freight volatility.

- Deliverable: A two-page preparation brief approved by the procurement sponsor.

Real-World Scenario

Real-world use case: supplier renewals commonly combine price, volume, quality, continuity, forecasting and relationship interests. The scenario is a realistic composite rather than a claim about a named company.

HarbourBean operates eight cafés. Its oat-milk agreement expires in six weeks. The incumbent supplier offers reliable quality but proposes a price increase and a minimum monthly volume. Operations wants continuity; Finance wants price discipline; Marketing wants sustainability evidence. A second supplier can cover only part of demand initially.

Source: <https://asana.com/resources/negotiation-skills>

Training Assumptions and Guardrails

- Current price is SGD 3.20 per litre; the supplier opens at SGD 3.62.
- Forecast demand is 12,000 litres monthly with a plus/minus 15% range.
- The alternative supplier can provide 7,000 litres at SGD 3.45 after a four-week onboarding period.
- A stock-out is estimated to reduce contribution by SGD 4,800 per day.

Scenario Questions

Question 1: What are the organisation's must-have, target, tradeable and relationship outcomes?

Question 2: What is the best credible BATNA, and what evidence is needed to validate it?

Question 3: Which issues could create value beyond unit price?

Question 4: What opening package and reservation point should the sponsor approve?

Detailed Step-by-Step Activity

Step 1 — Frame the decision

Write one decision statement naming the agreement, time horizon, parties and commercial purpose.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Separate positions from interests

List each stated demand, then infer and label the likely operational or commercial interest behind it.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Build the outcome hierarchy

Classify outcomes as must-have, target, tradeable or relationship; link each to evidence and an owner.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Develop and value alternatives

Compare incumbent renewal, split supply and full transition using price, capacity, onboarding risk and disruption exposure.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Set the negotiation range

Estimate the reservation point and a ZOPA hypothesis; state uncertainty instead of inventing precision.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Prepare the opening package

Combine price, forecast sharing, minimum volume, service level and sustainability reporting in a conditional proposal.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: The brief states an evidence-backed BATNA and reservation point, covers at least five issues, and separates targets from authority limits.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Activity 2 — Create a SaaS Renewal Team Mandate

TSC mapping: K2 · A2 · A3. Assign negotiation roles, decision rights and escalation rules for a cross-functional software renewal..

Goal and Deliverable

Prepare an internal team to renegotiate a customer-relationship-management platform used by Sales, Service and Finance.

- Deliverable: A one-page negotiation mandate plus a named role and escalation table.

Real-World Scenario

Real-world use case: SaaS renewals require commercial, technical, legal, security and end-user decisions. The company and figures are fictional training inputs.

Northstar Distribution's CRM subscription renews in 30 days. Sales wants advanced automation, IT wants fewer integrations, Security needs stronger incident notification, Finance wants a cap on annual increases, and Legal must approve data-transfer terms. The vendor account director can offer discounts but needs regional approval for liability changes.

Source: <https://builtin.com/articles/negotiation-skills>

Training Assumptions and Guardrails

- The current annual contract value is SGD 240,000 for 300 users.
- Forty-five licences are inactive; migration to an alternative takes four months.
- The CFO may approve up to SGD 255,000 if three defined risk controls are included.
- Only Legal may accept changes to liability, data location or termination language.

Scenario Questions

Question 1: Who owns the commercial outcome and who can bind the organisation?

Question 2: Which specialists must attend, remain on call or review offline?

Question 3: What commitments can the lead make without escalation?

Question 4: How should the team handle internal disagreement during the vendor meeting?

Detailed Step-by-Step Activity

Step 1 — Map stakeholders

Identify sponsor, lead, users, technical specialists, approvers, blockers and implementation owners.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Define roles

Assign lead negotiator, commercial analyst, technical expert, legal adviser, observer/recorder and executive sponsor.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Set authority

Create green, amber and red zones for terms the team may agree, conditionally discuss or never commit without approval.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Align priorities

Run a pre-brief that ranks issues and resolves conflicting internal success measures.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Design meeting behaviour

Agree speaking order, pause signals, sidebars, note ownership and how questions outside the mandate will be handled.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Create escalation protocol

Name the decision-maker, evidence required, communication channel and response time for each amber item.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: Every critical issue has one accountable owner, one decision authority and one escalation route; no participant has conflicting authority.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?

3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Activity 3 — Prepare a Commercial Lease Renewal

TSC mapping: K1 · K2 · A1 · A3. Use market evidence and objective criteria to prepare a multi-issue lease negotiation..

Goal and Deliverable

Represent a retail operator renewing a suburban mall lease where rent, fit-out, operating hours and exit flexibility all affect value.

- Deliverable: A landlord-ready term-sheet proposal supported by a transparent comparison model.

Real-World Scenario

Real-world use case: commercial leases are negotiated across base rent, service charges, incentives, duration, use, fit-out and break rights. This is a realistic composite.

Orchid Activewear's five-year lease is ending. The store is profitable, but footfall is uneven and online sales have grown. The landlord seeks a higher base rent and a new three-year lock-in. Orchid values continuity but needs refurbishment support and a break option if sales fall materially.

Source: <https://www.esade.edu/beyond/en/negotiation-techniques/>

Training Assumptions and Guardrails

- Current base rent is SGD 18,000 monthly; the landlord opens at SGD 20,500.
- Three comparable units range from SGD 18,700 to SGD 19,600 after incentives.
- A relocation would cost SGD 180,000 and close the store for six weeks.
- A landlord fit-out contribution of SGD 60,000 is worth more to Orchid than a short rent-free period.

Scenario Questions

Question 1: Which comparables are genuinely relevant, and what adjustments are required?

Question 2: What is the total value of rent, incentive, duration and break rights?

Question 3: Which three packages are equivalent to Orchid but differently attractive to the landlord?

Question 4: Which facts and assumptions should be disclosed, protected or verified?

Detailed Step-by-Step Activity

Step 1 — Define comparable criteria

Specify location, unit size, frontage, lease date, incentives and service charges before selecting evidence.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Calculate total occupancy cost

Model rent, charges, fit-out, closure cost, incentives and exit risk over the full term.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Identify interests

Translate rent, lock-in and fit-out positions into cash flow, occupancy stability, asset value and operating flexibility interests.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Set objective standards

Select defensible market and performance criteria and explain how they apply.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Create three packages

Vary rent, incentive, duration, renewal option, break clause and reporting while keeping expected value comparable.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Prepare evidence questions

List information required from the landlord and the internal evidence needed before final authority.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: The proposal compares at least three complete packages on total value and cites adjusted, relevant criteria rather than a single rent number.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Activity 4 — Plan a Singapore–Japan Distribution Partnership

TSC mapping: K2 · K3 · A2 · A3. Adapt process, communication and team roles for a cross-cultural distribution negotiation without relying on stereotypes..

Goal and Deliverable

Prepare a Singapore health-food producer to meet a Japanese distributor about territory, forecasts, brand control and launch support.

- Deliverable: A culturally adaptive negotiation plan that clearly separates verified facts from hypotheses.

Real-World Scenario

Real-world use case: international distribution negotiations may differ in communication, consensus, pacing, hierarchy and relationship-building. Individual behaviour must be verified rather than inferred from nationality.

Merlion Nutrition wants a three-year Japanese distribution agreement. The prospective distributor has requested a senior executive meeting before discussing price. Merlion's founder prefers fast decisions; the distributor has circulated technical questions to several departments and has not named the final approver.

Source: <https://www.pon.harvard.edu/daily/negotiation-skills-daily/types-of-negotiation-skills/>

Training Assumptions and Guardrails

- Merlion can allocate one senior sponsor and one bilingual adviser.
- Product registration will take an estimated four to six months.
- The distributor seeks exclusivity but has not committed to minimum annual volume.
- Both parties agree that all binding terms will be confirmed in English and Japanese versions reviewed by counsel.

Scenario Questions

Question 1: Which cultural observations are facts, and which are hypotheses to test?

Question 2: What respectful process questions should clarify authority and consensus?

Question 3: How should the agenda balance relationship-building and commercial progress?

Question 4: What safeguards prevent ambiguity across language versions?

Detailed Step-by-Step Activity

Step 1 — Separate evidence and hypothesis

Create two columns: observed behaviour or stated process, and possible interpretations requiring verification.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Map decision process

Ask how recommendations, technical review, executive approval and legal confirmation occur.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Adapt team composition

Assign sponsor, lead, technical expert, bilingual adviser and recorder with clear speaking roles.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Design the agenda

Sequence introductions, purpose, market strategy, interests, technical questions, commercial packages and next steps.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Plan communication checks

Use summaries, written issue logs, translation review and explicit confirmation of provisional versus agreed items.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Stress-test exclusivity

Link territory rights to minimum performance, reporting, review and exit provisions.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: The plan contains at least five verification questions, a clear authority path and no unsupported statement that treats culture as destiny.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Activity 5 — Design a Total-Reward Job Offer Negotiation

TSC mapping: K1 · K2 · K3 · A1 · A3. Prepare a multi-issue employment offer negotiation using priorities, alternatives, evidence and ethical information boundaries..

Goal and Deliverable

Represent a growing technology SME hiring a regional operations manager where pay, flexibility, scope and start date have different value to each side.

- Deliverable: Three authorised total-reward packages with rationale, limits and questions.

Real-World Scenario

Real-world use case: job offers are negotiated across salary, bonus, equity, flexibility, role scope, development and start date. Personal information must be handled lawfully and respectfully.

A Singapore software firm has selected a candidate for a regional operations role. The candidate's expected salary is above the original band, but they also value remote work, professional development and an earlier title review. The firm urgently needs a start within six weeks and must preserve internal equity.

Source: <https://sg.indeed.com/career-advice/career-development/negotiation-skills>

Training Assumptions and Guardrails

- Approved base salary band is SGD 9,500–10,500 monthly.
- A sign-on award up to SGD 8,000 and training budget up to SGD 6,000 are available.
- The candidate's alternative offer is not verified and should not be treated as fact.
- The employer may offer two remote days weekly after a three-month onboarding period.

Scenario Questions

Question 1: What are the employer's target, reservation point and non-financial priorities?

Question 2: Which candidate interests should be tested rather than assumed?

Question 3: How can three packages create choice while protecting internal equity?

Question 4: Which candidate information is relevant, confidential or inappropriate to request?

Detailed Step-by-Step Activity

Step 1 — Confirm mandate

Document salary band, negotiable benefits, approval rules, internal-equity constraints and required start window.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Prepare interest questions

Ask about role scope, career path, flexibility, start timing and risk—not personal circumstances unrelated to work.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Review objective criteria

Use role level, skills scarcity, internal comparators and relevant market data with transparent limitations.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Build packages

Create three combinations of base, sign-on award, development, flexibility, title review and start date.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Set conditional trades

Link higher-cost terms to commitment, timing or performance conditions where fair and lawful.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Prepare closure

Plan written confirmation, approval, expiry, reference checks and a respectful route if no agreement is reached.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: All packages remain inside authority, address at least four issues, state objective criteria and avoid discriminatory or intrusive assumptions.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Topic 2 — Negotiation Tactics

TSC mapping: K4 · K5 · K6 · A4 · A5. Opening · listening · anchoring · framing · conflict · concessions · closure · evaluation.

Key Concepts

- **Connect:** Use rapport, listening and empathy to understand interests and preserve working relationships.
- **Influence:** Anchor and frame with evidence, not unsupported pressure or deception.
- **Trade:** Make conditional, reciprocal concessions across issues of unequal value.
- **Record:** Document offers, rationale, agreement, owners and learning for implementation and review.

A tactic is useful only when it serves the strategy.

Key point: A tactic is useful only when it serves the strategy. Short-term pressure that damages information, trust or implementation can destroy deal value.

Conduct the negotiation

1. Open and align process
2. Exchange information
3. Create and test options
4. Bargain in packages
5. Close and confirm
6. Implement and review

Open the conversation

- **Rapport:** Create a professional climate without pretending disagreement does not exist.
- **Purpose:** State what decision or outcome the meeting should advance.
- **Process:** Confirm agenda, roles, authority, timing and how decisions will be recorded.
- **Tone:** Be firm on legitimate interests and respectful toward people.

Should you make the first offer?

Perspective A

- A credible first offer can anchor discussion when you have strong information.
- It can frame the range and communicate ambition.
- Support it with logic, criteria and package terms.

Perspective B

- Wait when uncertainty is high and their opening may reveal valuable information.
- Do not let an extreme opening substitute for diagnosis.
- Prepare a counter-anchor before hearing their number.

Design a defensible anchor

- **Ambitious:** Leave room to move while remaining inside a supportable range.
- **Specific:** A considered number can signal analysis, but precision must be real.
- **Explained:** Link the proposal to value, evidence, risk and comparable standards.
- **Packaged:** Anchor multiple terms so the conversation is not trapped on price.

Avoid arbitrary round numbers—not round numbers themselves.

Key point: Avoid arbitrary round numbers—not round numbers themselves. Precision helps only when it reflects genuine calculation; false precision weakens credibility.

Frame without manipulating

- Gain: Show benefits, opportunities and avoided costs created by agreement.
- Loss: Explain credible consequences of delay or non-agreement without threats.
- Fairness: Use objective standards that both parties can examine.
- Choice: Present options and trade-offs rather than a disguised ultimatum.

Active listening loop

1. Attend
2. Invite
3. Paraphrase
4. Label interests or emotion
5. Check accuracy
6. Build on what was learned

Questions that uncover value

- Open: What matters most about implementation timing?
- Diagnostic: What risk is the approval team trying to control?
- Testing: If service credits increased, would contract length become flexible?
- Clarifying: When you say reliable, which measure and threshold do you mean?

Empathy and agreement

Perspective A

- Empathy means accurately understanding their perspective and emotion.
- Naming concerns can reduce defensiveness and improve information quality.
- You can acknowledge impact without accepting their proposed solution.

Perspective B

- Agreement is a decision to accept a term or claim.
- Premature agreement can hide implementation risk and unresolved interests.
- Use empathy to diagnose; use criteria and authority to decide.

Emotional self-management

- Notice: Track physical cues, trigger thoughts and rising urgency.
- Pause: Use silence, a summary or a break before responding.
- Reframe: Separate the person from the problem and return to interests.
- Choose: Respond according to purpose, mandate and long-term consequences.

Difficult behaviour patterns

- Aggressive: Set boundaries, slow the pace and return to evidence and process.
- Avoidant: Use specific questions, smaller decisions and clear follow-up dates.
- Over-accommodating: Test authority and interests; do not exploit a fragile yes.

Respond to personal attacks

- Do not mirror: Lower intensity and avoid defending every provocation.
- Name impact: State that the behaviour prevents productive discussion.
- Exit safely: Pause or end the meeting when threats, harassment or bad faith continue.

Pressure tactics

- Deadline: Verify whether it is real; compare the cost of delay with a rushed decision.
- Competition: Ask what is comparable and avoid bidding against an unnamed alternative.
- Ultimatum: Clarify whether the term is final, explore underlying constraints, use BATNA.
- Nibble: Reopen the whole package or trade the late request for equivalent value.

Delay and authority tactics

- Limited authority: Confirm decision rights early and make proposals conditional on mutual approval.
- Missing person: Request the decision-maker or agree a written escalation path.
- Repeated delay: Use milestones, expiry dates and the cost of waiting.
- Strategic pause: A legitimate break can improve judgement; document next steps.

Good-cop / bad-cop and moral pressure

Perspective A

- Recognise the contrast effect: a merely poor offer can look attractive after an extreme demand.
- Evaluate every proposal against objectives, criteria and BATNA.
- Ask both representatives to confirm one accountable position.

Perspective B

- A moral appeal may surface values but can also shame or bypass evidence.
- Acknowledge the value, then examine reciprocal duties and facts.
- Do not accept a term outside authority to relieve social discomfort.

A tactical response sequence

1. Recognise
2. Pause
3. Clarify
4. Test legitimacy
5. Reframe
6. Respond or walk away

Concession discipline

- Reciprocal: Exchange movement for movement, information or commitment.
- Conditional: Use if–then language so the package remains connected.
- Recorded: Capture what moved, why, and whether earlier terms changed.
- Diminishing: Reduce movement as the reservation point approaches.

Trade—do not simply split

- Logroll: Trade issues with different priority rankings.
- Contingent term: Tie value to future outcomes when forecasts differ.
- Add an issue: Introduce scope, timing, risk or support to expand the solution space.

Multiple equivalent simultaneous offers

- Package A: Higher price with shorter term and stronger exit rights.
- Package B: Lower price with volume commitment and forecast visibility.
- Package C: Mid-price with performance incentives and shared implementation.

- Learning: Their reactions reveal priorities without asking them to disclose a limit.

Move from impasse to diagnosis

1. Name the deadlock
2. Separate issues
3. Restate interests
4. Change criterion or package
5. Take a structured break
6. Escalate or mediate

Impasse breakers

- Process: Change sequence, participants, venue, data or decision rule.
- Substance: Add issues, phase commitments or use contingent agreements.
- Relationship: Use a trusted senior sponsor or neutral facilitator.
- Alternative: Pause, pursue BATNA and leave a credible route back.

Say no cleanly

Perspective A

- State the boundary directly and briefly.
- Explain the legitimate interest, constraint or authority behind it.
- Offer an alternative path where one exists.

Perspective B

- Avoid a vague maybe that creates false expectations.
- Do not over-explain until the other side can litigate every detail.
- A respectful no can preserve trust better than a reluctant yes.

When to walk away

- Below reservation: The package is worse than the best credible alternative.
- Unethical or unsafe: Deception, threats or illegal expectations make agreement unacceptable.
- No authority: Required approval is unavailable and conditions cannot protect the commitment.
- Implementation failure: The promised result cannot be resourced, measured or delivered.

Close the agreement

1. Summarise the full package
2. Resolve ambiguity
3. Confirm authority
4. Document terms
5. Assign owners and dates
6. Set review and dispute path

Terms that make agreement executable

- Scope: Deliverables, exclusions, quality and acceptance criteria.
- Commercial: Price, payment, incentives, credits and change control.
- Governance: Owners, reporting, escalation, review and dispute resolution.

- Risk: Confidentiality, liability, termination, continuity and transition.

Consensus and consent

Perspective A

- Consensus seeks an outcome all required parties can support or live with.
- It is not unanimous enthusiasm or endless accommodation.
- Record reservations and implementation conditions.

Perspective B

- Formal consent requires the right person, authority and documentation.
- A handshake is not a substitute for agreed terms where writing is required.
- Confirm what is binding, provisional or subject to approval.

Negotiation record

1. Date and participants
2. Objectives and authority
3. Offers and rationale
4. Concessions and conditions
5. Agreement and open items
6. Owners, dates and evidence

Debrief the negotiation

- Outcome: Compare result with target, reservation point and BATNA.
- Process: Review preparation, information, tactics, decisions and turning points.
- Relationship: Assess trust, fairness, communication and future cooperation.
- Implementation: Track obligations, value realisation, disputes and lessons.

Activity 6 — Anchor and Frame an Agency Retainer

TSC mapping: K4 · K5 · A4. Use a supportable opening offer, framing and package design to negotiate a marketing agency retainer..

Goal and Deliverable

Represent an SME selecting a digital agency while balancing price, scope, performance evidence and launch speed.

- Deliverable: A five-minute opening and a complete commercial package with evidence.

Real-World Scenario

Real-world use case: professional-service retainers combine scope, quality, staffing, intellectual property, metrics and commercial risk. The scenario is a realistic composite.

A consumer brand needs an agency for a six-month regional launch. The preferred agency proposes SGD 28,000 monthly and promises senior attention but leaves deliverables vague. A lower-priced bidder has less category experience. The launch date is fixed, but media spend and production scope can be phased.

Source: <https://www.fuqua.duke.edu/programs/executive-education/business-negotiation-skills/negotiation-techniques>

Training Assumptions and Guardrails

- The approved expected budget is SGD 24,000 monthly, with authority up to SGD 26,000 for defined senior staffing and performance reporting.
- The preferred agency's comparable work reduced acquisition cost by 12%, but attribution is not independently verified.
- The brand values launch readiness more than a small price reduction.
- A pilot phase can be completed in eight weeks before full regional rollout.

Scenario Questions

Question 1: Should the brand make the first offer, and why?

Question 2: What evidence makes the anchor credible rather than arbitrary?

Question 3: How should value be framed without overstating uncertain performance?

Question 4: Which concessions should be conditional and reciprocal?

Detailed Step-by-Step Activity

Step 1 — Choose the opening strategy

Assess information quality, alternatives and anchoring risk before deciding who should open.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Construct the anchor

State a complete package covering fee, scope, team, milestones, reporting, IP and performance review.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Prepare the rationale

Link each term to workload, benchmark, risk, outcomes or implementation requirements.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Draft the counter-anchor

Prepare language to reject an unsupported extreme without becoming reactive.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Build a concession ladder

Sequence possible movement and specify the reciprocal term required for each step.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Rehearse and record

Role-play the opening, capture questions and update the issue log after the simulated response.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: The opening is ambitious but evidence-backed, covers at least six terms and includes no unconditional concession.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Activity 7 — Recover a Logistics Service Relationship

TSC mapping: K4 · K5 · A4. Use listening, empathy, questions and emotional regulation with a defensive service provider..

Goal and Deliverable

Renegotiate a logistics service-level agreement after repeated delivery failures while preserving peak-season capacity.

- Deliverable: A structured recovery meeting record and conditional service-improvement agreement.

Real-World Scenario

Real-world use case: service-recovery negotiations combine operational facts, attribution disputes, emotion, capacity constraints and future relationship value.

LionCity Homeware's logistics provider missed 18% of delivery windows during a campaign. Customer complaints rose, but the provider says inaccurate forecasts and late order changes caused most failures. The account manager becomes defensive when service credits are mentioned. Switching providers before the year-end peak is risky.

Source: <https://www.betterup.com/blog/negotiation-skills>

Training Assumptions and Guardrails

- The SLA target is 95% on-time delivery; actual performance was 82% for six weeks.
- Thirty percent of late orders were changed by LionCity after the agreed cut-off.
- Service credits could total SGD 42,000, but capacity for the peak period is more valuable.
- Both parties can share weekly forecast and capacity data under confidentiality controls.

Scenario Questions

Question 1: Which facts, interpretations and emotions must be separated?

Question 2: What open and diagnostic questions could reveal the failure system?

Question 3: How can the team acknowledge impact without accepting unsupported blame?

Question 4: What reciprocal recovery commitments create measurable improvement?

Detailed Step-by-Step Activity

Step 1 — Regulate before engaging

Identify triggers, choose a neutral opening and agree when either team may request a break.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Build a shared fact base

Separate incident data, contractual definitions, disputed attribution and missing evidence.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Run the listening loop

Ask, paraphrase, label concerns, check accuracy and summarise areas of agreement.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Diagnose root causes

Map forecasting, cut-off, capacity, route, communication and exception-handling failures.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Create a recovery package

Combine forecast discipline, capacity reservation, operational review, service credits and escalation triggers.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Confirm monitoring

Set metrics, owners, weekly cadence, evidence source, review date and consequences of missed recovery milestones.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: The record distinguishes fact from blame, captures both parties' interests and assigns measurable reciprocal actions with owners and dates.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Activity 8 — Break a Construction Variation Impasse

TSC mapping: K5 · K6 · A4. Diagnose and resolve an impasse using objective criteria, issue separation and escalation choices..

Goal and Deliverable

Facilitate a negotiation between a property owner and contractor over cost and schedule impact from an instructed design variation.

- Deliverable: A without-prejudice settlement package and a documented fallback path.

Real-World Scenario

Real-world use case: project variations frequently create disputes over entitlement, valuation, delay, evidence and authority. This simulation is educational and not legal advice.

An office refurbishment owner instructed a late layout change. The contractor claims additional labour, materials and a 12-day extension. The owner accepts some cost but says the contractor's notice was late and its schedule evidence is weak. Meetings have become positional and both sides threaten formal dispute procedures.

Source: <https://www.pon.harvard.edu/freemium/negotiation-skills-negotiation-strategies-and-negotiation-techniques-to-help-you-become-a-better-negotiator/>

Training Assumptions and Guardrails

- The contractor claims SGD 185,000; the owner's internal estimate is SGD 112,000.
- Independent quantity rates support a range of SGD 125,000–145,000 before delay impact.
- A 12-day delay would cost the owner SGD 36,000 in temporary premises.
- The contract and legal rights are simplified training inputs and require professional review in practice.

Scenario Questions

Question 1: Is the impasse about entitlement, valuation, delay, process or face?

Question 2: Which precedents and objective criteria are genuinely comparable?

Question 3: What package could separate undisputed and disputed components?

Question 4: When should the parties pause, escalate, mediate or pursue BATNA?

Detailed Step-by-Step Activity

Step 1 — Name the impasse

Write a neutral statement of the deadlock without assigning motive or blame.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Separate issues

Divide entitlement, quantum, extension of time, records, cash flow and future coordination.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Test criteria

Compare rates, programme evidence and prior variations; document context differences.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Generate options

Consider staged payment, independent valuation, time mitigation, shared contingency and reserved rights.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Choose process

Assess direct settlement, senior escalation, expert determination, mediation and formal procedures against cost and time.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Record the proposal

State agreed, provisional and disputed items, conditions, deadlines and the fallback if acceptance is not reached.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: The recommendation addresses each issue separately, uses at least two defensible criteria and preserves a clear non-agreement path.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Activity 9 — Negotiate a Multi-Party Growth Investment

TSC mapping: K4 · K5 · K6 · A4. Use coalition mapping, package trades and precedent analysis in a multi-party term-sheet negotiation..

Goal and Deliverable

Represent a founder balancing a lead investor, existing shareholders and key management during a growth funding round.

- Deliverable: A board briefing recommending one of three complete investment packages.

Real-World Scenario

Real-world use case: investment negotiations involve valuation, governance, control, liquidity, incentives and long-term relationships among several parties. This is not investment or legal advice.

A profitable software firm seeks SGD 8 million for regional expansion. A lead investor offers attractive capital but requests board control and a strong liquidation preference. Existing shareholders fear dilution; the management team wants an option pool; the founder values strategic access and operational autonomy.

Source: <https://builtin.com/articles/negotiation-skills>

Training Assumptions and Guardrails

- The lead investor proposes a SGD 32 million pre-money valuation.
- An alternative investor may offer a higher valuation but cannot decide for eight weeks.
- The board currently has three seats: two founder nominees and one independent.
- All legal and tax terms are simplified and require qualified professional advice.

Scenario Questions

Question 1: Which parties can form supportive or blocking coalitions?

Question 2: Which terms are economically linked even if negotiated separately?

Question 3: What precedent comparisons are misleading without context?

Question 4: Which package best balances capital, control, incentives and relationship value?

Detailed Step-by-Step Activity

Step 1 — Map parties and coalitions

Identify decision rights, interests, influence, likely alliances and possible blocking combinations.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Translate legal terms into interests

Explain valuation, board seats, preference, protection and option pool in commercial consequences.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Compare precedents

Adjust market term examples for stage, risk, growth, control and investor contribution.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Create packages

Build three combinations of valuation, governance, preference, option pool, milestones and strategic support.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Plan side alignment

Schedule lawful, transparent pre-meetings that prevent surprises without making hidden commitments.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Recommend and record

Score packages, state residual risks, identify approvals and draft conditional board instructions.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: The board brief covers every material stakeholder, compares three packages and explains why each cited precedent is or is not comparable.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Activity 10 — Run and Debrief a Strategic Sustainability Partnership

TSC mapping: K1 · K2 · K3 · K4 · K5 · K6 · A1 · A2 · A3 · A4 · A5. Integrate preparation, tactics, closure and recording in a complete team negotiation simulation..

Goal and Deliverable

Negotiate a partnership between an urban property operator and a clean-energy solutions company to deploy solar and energy-management services across commercial sites.

- Deliverable: A signed provisional term sheet or a documented no-deal decision supported by the BATNA.

Real-World Scenario

Real-world use case: strategic sustainability partnerships combine capital, performance, access, data, branding, risk and long-term governance. The organisations and figures are fictional training inputs.

CivicSquare Properties wants to reduce energy cost and emissions across five sites without major upfront capital. SunGrid Solutions proposes a ten-year performance contract. CivicSquare worries about access, savings verification and exit rights; SunGrid needs scale, roof access and reliable payment. Teams receive different confidential priorities but share a common data pack.

Source: <https://www.pon.harvard.edu/daily/negotiation-skills-daily/top-10-negotiation-skills/>

Training Assumptions and Guardrails

- Estimated project investment is SGD 3.2 million funded primarily by SunGrid.
- Modelled annual savings are SGD 620,000 with a plus/minus 20% uncertainty band.
- CivicSquare can offer five sites but only three have completed structural surveys.
- Both parties require data security, safe access and measurable performance governance.

Scenario Questions

Question 1: What outcomes, BATNAs, roles, evidence and cultural/process assumptions should each team prepare?

Question 2: Which opening package creates a credible anchor across value, risk and implementation?

Question 3: How should teams respond to pressure, impasse and late requests while preserving reciprocity?

Question 4: Does the final record make commitments, owners, evidence and review conditions executable?

Detailed Step-by-Step Activity

Step 1 — Prepare separately

Each team completes objectives, interests, BATNA, authority, questions, package and concession plan from its confidential brief.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 2 — Assign roles

Name lead, specialist, approver, observer and recorder; agree team signals and escalation rules.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 3 — Open and diagnose

Confirm process, exchange priorities, ask diagnostic questions and summarise interests before bargaining.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 4 — Create and claim value

Use packages, objective criteria, conditional trades and a supportable anchor; record every movement.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 5 — Close or walk away

Confirm the complete package, approvals, owners, dates, measurement and unresolved items—or document why BATNA is preferred.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Step 6 — Debrief with evidence

Compare outcome with target and BATNA; review tactics, relationship, record quality, implementation risk and next improvements.

Checkpoint: Record the evidence, calculation or decision produced before moving to the next step.

Acceptance Test

Pass condition: The submission contains a complete negotiation log and executable term sheet or no-deal rationale, with explicit mapping to A1–A5 and all six knowledge areas.

Reflection and Debrief

1. Which assumption changed your negotiation plan most, and why?
2. What additional evidence would you request?
3. Which stakeholder owns the next decision or approval?
4. What would you repeat or change in the next negotiation?

Assessment Preparation

- Written Assessment (WA-SAQ) — 6 open-ended questions, 1 hour, open book; covers K1–K6.
- Case Study Assessment (CS) — 2 integrated open-ended questions, 1 hour, open book; covers A1–A5.
- Review the activity acceptance tests and be able to explain your judgement in your own words.
- Only learner-facing question papers are opened on the LMS; answer keys are trainer-only.

Assessment Flow

1. Complete SSG/TRAQOM assessment digital attendance.
2. Sit the WA-SAQ, then the Case Study.
3. Upload completed answers to the LMS.
4. Sign the Assessment Summary Record.

Sources and Further Reading

Course page and approved outcomes: <https://www.tertiarycourses.com.sg/wsqa-unlocking-business-potential-with-strategic-negotiation-tactics.html>

Asana — negotiation skills: <https://asana.com/resources/negotiation-skills>

Built In — negotiation skills and examples: <https://builtin.com/articles/negotiation-skills>

Harvard Program on Negotiation — top negotiation skills:

<https://www.pon.harvard.edu/daily/negotiation-skills-daily/top-10-negotiation-skills/>

Esade — negotiation techniques: <https://www.esade.edu/beyond/en/negotiation-techniques/>

Duke Fuqua — negotiation techniques:

<https://www.fuqua.duke.edu/programs/executive-education/business-negotiation-skills/negotiation-techniques>

Crowdspring — negotiation guide: <https://www.crowdspring.com/blog/negotiation/>

Indeed Singapore — negotiation skills:

<https://sg.indeed.com/career-advice/career-development/negotiation-skills>

Harvard PON — negotiation skills and techniques: <https://www.pon.harvard.edu/freemium/negotiation-skills-negotiation-strategies-and-negotiation-techniques-to-help-you-become-a-better-negotiator/>

Harvard PON — types of negotiation skills:

<https://www.pon.harvard.edu/daily/negotiation-skills-daily/types-of-negotiation-skills/>

BetterUp — negotiation skills: <https://www.betterup.com/blog/negotiation-skills>

Glossary

- BATNA: Best alternative to a negotiated agreement.
- WATNA: Worst credible alternative if no agreement is reached.
- Reservation point: The worst acceptable negotiated result before the BATNA is preferable.
- ZOPA: Zone of possible agreement where both parties prefer agreement to their alternatives.
- Position: A stated demand or proposed outcome.
- Interest: The need, concern, motive or constraint behind a position.
- Anchor: An opening reference point that can influence later judgement.
- Framing: Presenting an issue through a chosen perspective, criterion or consequence.
- Logrolling: Trading across issues that the parties value differently.
- Contingent agreement: A term whose outcome depends on a future event or measurable result.
- Impasse: A deadlock where current proposals or process no longer produce movement.
- Negotiation record: A traceable log of offers, conditions, rationale, agreements, open issues, owners and dates.